

August 10, 2026
Dept. 9
Probate Tentative Rulings

2.	25PR0352	ESTATE OF LESLIE JAMES MATHERS, III
PETITION TO APPOINT PERSONAL REPRESENTATIVE		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON AUGUST 24, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 10, 2026.

Petitioner, Anthony Patterson ("Petitioner"), seeks appointment as Personal Representative of the estate of Leslie James Mathers, III ("Decedent"), as a creditor pursuant to Probate Code § 8461(q).

Petitioner and Decedent were involved in a personal injury litigation case wherein Decedent admitted fault for Petitioner's injuries. Decedent and his surviving spouse agreed to transfer their home and only asset upon their deaths to Petitioner, with their heirs receiving 10% of the net sale proceeds. Decedent passed away prior to the signing of the formal agreement. Petitioner asserts surviving spouse has refused to honor the settlement agreement.

Petitioner seeks appointment as Personal Representative in order to enforce his creditor claim before estate assets are sold off. Petitioner alleges that surviving spouse and Decedent's daughters have declined to accept appointment. Surviving spouse previously objected to Petitioner's ex parte request for appointment, asserting that there are no probate assets requiring administration and thus no estate requiring appointment of a personal representative. The Office of the Public Administrator has informed Petitioner it will not accept appointment because there are no known assets of the Estate which the public administrator can marshal.

When a spouse dies intestate leaving property that passes to the surviving spouse under Section 6401, or dies testate and by his or her will devises all or a part of his or her property to the surviving spouse, the property passes to the survivor subject to the provisions of Chapter 2 (commencing with Section 13540) and Chapter 3 (commencing with Section 13550), and no administration is necessary. Probate Code, § 13500.

Petitioner, surviving spouse, and the Office of the Public Administrator have instructed that the only asset is the home, which passed to surviving spouse upon Decedent's death. As Decedent left no assets, there is no estate to administer.

Petitioner's request to be appointed as Personal Representative is denied.

TENTATIVE RULING #2:

ABSENT OBJECTION THE PETITION IS DENIED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

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IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.